days over the last week, they had been allowed to start and finish their song. Justice Coldstream, however, now regarded this as an affront. As president of the tribunal, he instructed the police to physically remove the accused from the courtroom.

It was then that a bevy of ‘more than 15 constables sprang on each accused and handcuffed them one by one, by force’.[6] It did not stop there. Prem Dutt and Ajoy Ghosh found themselves flying in the air and crashing over the metal barrier into the prisoners’ dock. They blacked out as they were rendered wholly insensate. There were screams of pain from all the accused in the courtroom. Bhagat Singh remonstrated again. He told the judges that they were nothing more than ‘cowards and mercenaries’. The other accused asked the Indian judge, Justice Agha Haider, how he could in all conscience continue to serve on the tribunal and asked him to resign. Amid the cacophony, the hearing was adjourned by Justice Coldstream as he brushed his judicial gown, rose up from the bench and walked out.[7] The disorder, however, touched a raw nerve in the Indian judge. His conscience was pricked. The next day he had to sign off the proceedings of the previous day. But Justice Agha Haider refused to do so. Instead, he took it upon himself to take the unprecedented bold step of writing a statement to the effect, saying, ‘I was not a party to the order of the removal of the accused from the court to the jail and I was not responsible for it in anyway. I disassociate myself from all that took place . . . today in consequence of that order_ AGHA HAIDAR.’[8]

This must have come as a complete shock to the Tribunal President Justice Coldstream. Yet, Justice Agha Haider was right. Paragraph 9(1) of the ordinance of 1930, containing a reference to the ‘Special Powers’ of the tribunal to enable it to deal with an accused who behaved in a ‘persistently disorderly manner’, did not authorize the tribunal to have prisoners beaten up by the police in open court. In this case, the accused were not behaving in ‘persistently disorderly conduct’. Their conduct of singing a revolutionary song was not taking place ‘at any stage of the trial’, as the trial was yet to begin. The long-standing practice had always been to allow the singing to take place, after which the handcuffs would be removed and